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MEMORANDUM OF DEPOSIT OF TITLE DEEDS
(EQUITABLE MORTGAGE)

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This MEMORANDUM OF DEPOSIT OF TITLE DEEDS (hereinafter referred to as "this Memorandum") is executed on this 20th day of June, 2019 (Twentieth day of June, Two Thousand and Nineteen) at New Delhi.

BETWEEN

MRS. PRIYA VIKRAM CHAUHAN, Wife of Mr. Vikram Singh Chauhan, aged about 48 years, residing at Flat No. 8, Fourth Floor, Plot No. 1A, Hauz Khas Enclave, New Delhi - 110016, holding Permanent Account Number (PAN): CJKPC2294L and Aadhaar No. XXXX-XXXX-5938 (hereinafter referred to as the "MORTGAGOR" or the "DEPOSITOR", which expression shall, unless repugnant to the context or meaning thereof, include her heirs, executors, administrators, legal representatives and assigns) of the FIRST PART;

AND

HDFC BANK LIMITED, a company incorporated under the Companies Act, 1956, having its Registered Office at HDFC Bank House, Senapati Bapat Marg, Lower Parel, Mumbai - 400013, and inter alia carrying on business of banking through its branch office at Hauz Khas Branch, M-21, Main Market, Hauz Khas, New Delhi - 110016, acting through its duly authorized officer, Mr. Sandeep Krishnamurthy, Deputy Manager - Retail Assets (hereinafter referred to as the "MORTGAGEE" or the "DEPOSITEE" or the "BANK", which expression shall, unless repugnant to the context or meaning thereof, include its successors, assigns, and permitted transferees) of the SECOND PART.

The Mortgagor and the Mortgagee are hereinafter collectively referred to as the "Parties" and individually as a "Party".

RECITALS

WHEREAS the Mortgagor is the lawful and absolute owner of the immovable property being Flat No. 8, situated on the Fourth Floor, in the building constructed on Plot No. 1A, Hauz Khas Enclave, New Delhi - 110016, admeasuring 1200 sq.ft. (One Thousand Two Hundred Square Feet) of super built-up area, more particularly described in the Schedule hereunder written (hereinafter referred to as the "Mortgaged Property" or the "Scheduled Property");

AND WHEREAS the Mortgagor acquired the Mortgaged Property by virtue of a Gift Deed bearing Document No. 2891 of the year 2015, registered in the Office of the Sub-Registrar, SRO V-A (Hauz Khas), New Delhi, executed in her favour by her husband, Mr. Vikram Singh Chauhan, Son of Shri Harbhajan Singh Chauhan, out of natural love and affection;

AND WHEREAS the said Mr. Vikram Singh Chauhan had originally acquired the property by virtue of a Sale Deed bearing Document No. 5847 of the year 2005, registered in the Office of the Sub-Registrar, SRO V-A (Hauz Khas), New Delhi, and the mortgage earlier created in favour of Axis Bank has been duly discharged vide Reconveyance / Release Deed No. 14502 of the year 2012;

AND WHEREAS the Mortgagor has applied to the Bank for a housing / home equity loan (hereinafter referred to as the "Loan") of Rs. 55,00,000/- (Rupees Fifty-Five Lakhs Only) for the purpose of renovation and personal requirements, and the Bank has agreed to sanction and disburse the Loan to the Mortgagor on the terms and conditions set forth in the Loan Agreement / Sanction Letter dated 12th June, 2019, bearing Reference No. HDFC/HKS/HL/2019/06-3347;

AND WHEREAS the principal terms of the Loan are as follows:

- (i) Principal Amount : Rs. 55,00,000/- (Rupees Fifty-Five Lakhs Only)
- (ii) Rate of Interest : 8.50% per annum (floating, linked to HDFC Bank MCLR)
- (iii) Tenure : 240 months (20 years / Two Hundred and Forty months)
- (iv) EMI (approx.) : Rs. 47,780/- per month
- (v) Mode of Repayment : Equated Monthly Instalments (EMI) through auto-debit from Savings Account No. 26101XXXXXXX497, HDFC Bank, Hauz Khas Branch

AND WHEREAS as a condition precedent to the sanction and disbursement of the Loan, the Bank has required the Mortgagor to create a security by way of equitable mortgage by deposit of original title deeds of the Mortgaged Property with the Bank, in accordance with Section 58(f) of the Transfer of Property Act, 1882;

AND WHEREAS the Mortgagor has agreed to deposit the original title deeds and documents relating to the Mortgaged Property with the Bank to create an equitable mortgage as security for the due repayment of the Loan together with interest, costs, charges, and all other monies payable under the Loan Agreement;

AND WHEREAS the Mortgagor has, on the date of execution of this Memorandum, deposited the following original title deeds and documents with the Bank at its Hauz Khas Branch, New Delhi, with the intention of creating a mortgage by deposit of title deeds:

LIST OF ORIGINAL DOCUMENTS DEPOSITED:

Sr. No.	Document Description	Doc. No.
1	Original Sale Deed (Rameshwar Prasad Gupta in favour of Vikram Singh Chauhan)	5847/2005

2	Original Deed of Reconveyance / Release Deed (Axis Bank releasing mortgage)	14502/2012
3	Original Gift Deed (Vikram Singh Chauhan in favour of Priya Vikram Chauhan)	2891/2015
4	Allotment Letter / Possession Letter issued by the Developer / Builder	--
5	Approved Building Plan / Layout Plan	--
6	Latest Property Tax Receipt and Paid Challans	--
7	Latest Electricity Bill / Water Bill	--
8	Encumbrance Certificate issued by the SRO for the period 2005 to 2019	--
9	NOC from Residents' Welfare Association	--

NOW THIS MEMORANDUM WITNESSETH AND IT IS HEREBY AGREED, DECLARED AND RECORDED AS FOLLOWS:

1. CREATION OF EQUITABLE MORTGAGE

That the Mortgagor has on this day, i.e. 20th June, 2019, deposited the original title deeds and documents listed hereinabove with the Bank at its Hauz Khas Branch, New Delhi, with the intent to create a mortgage by deposit of title deeds (equitable mortgage) under Section 58(f) of the Transfer of Property Act, 1882, as security for the due repayment of the Loan of Rs. 55,00,000/- (Rupees Fifty-Five Lakhs Only) together with all interest (including penal interest, if any), costs, charges, expenses, and all other monies that may become due and payable by the Mortgagor to the Bank under or in connection with the Loan Agreement.

2. EXTENT OF SECURITY

That this equitable mortgage shall be a continuing security and shall remain in force until the Loan together with all interest, costs, charges, expenses, and other monies have been fully and finally repaid and discharged to the complete satisfaction of the Bank, and the Bank issues a formal No Objection Certificate (NOC) or Release Letter confirming the same.

3. COVENANTS OF THE MORTGAGOR

The Mortgagor hereby covenants, represents, and warrants to the Bank as follows:

- (a) That the Mortgagor is the sole and absolute owner of the Mortgaged Property and has clear, marketable and unencumbered title to the same;
- (b) That the Mortgaged Property is free from all prior encumbrances, charges, liens, mortgages, attachments, claims, demands, acquisitions, notifications, lis pendens, court orders, and liabilities of whatsoever nature;
- (c) That the Mortgagor has full legal right, power, and authority to create this mortgage and to deposit the title deeds with the Bank;
- (d) That the Mortgagor shall not sell, transfer, assign, lease, sublease, license, gift, exchange, or otherwise alienate or create any third-party interest in the Mortgaged Property without the prior written consent of the Bank;
- (e) That the Mortgagor shall keep the Mortgaged Property insured against fire, earthquake, flood, and other risks as may be required by the Bank, and shall assign the insurance policy in favour of the Bank;
- (f) That the Mortgagor shall pay all taxes, rates, cesses, charges, and other statutory levies payable in respect of the Mortgaged Property punctually and regularly;
- (g) That the Mortgagor shall maintain the Mortgaged Property in good and tenantable condition and shall not make any structural alterations without the prior written consent of the Bank;
- (h) That in the event of default in repayment of the Loan or any instalment thereof, or breach of any term or condition of the Loan Agreement or this Memorandum, the Bank shall be entitled to enforce the security by sale or otherwise in accordance with the provisions of the Transfer of Property Act, 1882, the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 (SARFAESI Act), and any other applicable law;
- (i) That the Mortgagor shall indemnify and keep the Bank indemnified and harmless against all losses, damages, costs, charges, claims, demands, and expenses that the Bank may suffer or incur by reason of any defect in the title of the Mortgaged Property or any misrepresentation by the Mortgagor.

4. RIGHTS OF THE BANK

- (a) The Bank shall retain the original title deeds and documents deposited hereunder until the Loan together with all monies due thereunder has been fully repaid and discharged;

- (b) The Bank shall have the right to register this Memorandum with the Sub-Registrar or any other authority as may be required under applicable law;
- (c) The Bank shall have the right to inspect the Mortgaged Property at any time during the subsistence of the Loan;
- (d) In the event of default, the Bank shall be entitled to take possession of the Mortgaged Property and to sell or dispose of the same in accordance with the applicable law, including the SARFAESI Act, 2002.

5. GOVERNING LAW AND JURISDICTION

This Memorandum shall be governed by and construed in accordance with the laws of India, including the Transfer of Property Act, 1882, the Indian Contract Act, 1872, the Indian Stamp Act, 1899, the Registration Act, 1908, and the SARFAESI Act, 2002. The Courts and Debt Recovery Tribunals at New Delhi shall have exclusive jurisdiction.

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SCHEDULE OF PROPERTY (Mortgaged Property)

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ALL THAT the residential flat being:

Flat No. : 8-A (Eight-A)
Floor : Fourth Floor
Plot No. : 1A
Locality : Hauz Khas Enclave
District : South Delhi
City : New Delhi
PIN Code : 110016
State : NCT of Delhi

Super Built-Up Area : 1200 sq.ft. (One Thousand Two Hundred Square Feet)
Carpet Area : Approximately 920 sq.ft.

BOUNDED AS FOLLOWS:

On the East : Common passage / staircase
On the West : Flat No. 7, Fourth Floor
On the North : Outer wall facing road
On the South : Rear open space / service lane

Together with proportionate undivided share in the land beneath the building constructed on Plot No. 1A, Hauz Khas Enclave, New Delhi, and the common areas and facilities including staircases, lifts, corridors, parking area, and other common amenities.

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IN WITNESS WHEREOF the Mortgagor and the authorized representative of the Bank have hereunto set and subscribed their respective hands and signatures / seal on the day, month and year first above written.

MORTGAGOR / DEPOSITOR:
Mrs. Priya Vikram Chauhan
W/o Mr. Vikram Singh Chauhan

Signature: _____
Date: 20th June, 2019

MORTGAGEE / DEPOSITEE:
For and on behalf of HDFC Bank Limited

Name : Mr. Sandeep Krishnamurthy
Designation: Deputy Manager - Retail Assets, Hauz Khas Branch

Signature: _____
Seal of the Bank: [HDFC BANK LIMITED]
Date: 20th June, 2019

WITNESSES:

1. Name : Ms. Anita Bhatia
D/o : Shri Rajinder Kumar Bhatia
Address : B-7, Gulmohar Park, New Delhi-110049
Signature: _____

2. Name : Mr. Rohit Malhotra
S/o : Shri Prem Nath Malhotra
Address : 22, Safdarjung Development Area, New Delhi-110016
Signature: _____

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REGISTRATION ENDORSEMENT

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Registered in the Office of the Sub-Registrar, SRO V-A (Hauz Khas),
New Delhi.

Document No. : 7766 of 2019
Book No. : I (Book 1)
Volume No. : 1592
Pages : 1 to 14
Date of Registration : 22nd June, 2019

Presented by : Mrs. Priya Vikram Chauhan (Mortgagor)
Identified by : Ms. Anita Bhatia (Witness No. 1)

The executant appeared before me and admitted execution of the above document. Her identity was verified. The document is registered accordingly under the provisions of the Registration Act, 1908.

Sd/-
Sub-Registrar
SRO V-A (Hauz Khas), New Delhi

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